

CLOUD SERVICES AGREEMENT

Agreement Number: CSA-2025-MFG-ST-001

Effective Date: January 1, 2026

Term: Three (3) Years

PARTIES

PROVIDER: StratusCloud Technologies Inc. 2500 Technology Boulevard, Suite 800 Santa Clara, CA 95054 United States of America

CUSTOMER: Meridian Financial Group One Meridian Plaza, 42nd Floor London EC2N 2DB United Kingdom

RECITALS

WHEREAS, Provider is engaged in the business of providing enterprise-grade cloud infrastructure, platform, and managed database services;

WHEREAS, Customer is a multinational banking institution requiring secure, compliant, and highly available cloud infrastructure to support its global operations across 45 countries;

WHEREAS, the parties desire to enter into this Agreement whereby Provider shall furnish cloud services to Customer under the terms and conditions hereinafter set forth;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

ARTICLE 1: DEFINITIONS

1.1 Definitions. For purposes of this Agreement:

- (a) "**Availability**" means the percentage of time during any calendar month that the Services are operational and accessible to Customer, calculated as: $[(\text{Total Minutes in Month} - \text{Downtime Minutes}) / \text{Total Minutes in Month}] \times 100$.
- (b) "**Covered Services**" means the Infrastructure as a Service (IaaS), Platform as a Service (PaaS), and Managed Database Services as described in Exhibit A.
- (c) "**Customer Data**" means all electronic data, content, and information submitted, stored, transmitted, or processed by or on behalf of Customer using the Services.
- (d) "**Downtime**" means any period during which the Covered Services are unavailable, excluding Scheduled Maintenance and circumstances defined in Section 3.3 (SLA Exclusions).
- (e) "**Production Environment**" means Customer's live banking workloads processing real customer transactions, as distinguished from development, testing, or staging environments.
- (f) "**Recovery Point Objective (RPO)**" means the maximum acceptable period during which Customer Data may be lost due to a Service incident.
- (g) "**Recovery Time Objective (RTO)**" means the target duration within which Services must be restored following an incident.
- (h) "**Reserved Instances**" means compute and database resources pre-purchased by Customer for a specified term at discounted rates.
- (i) "**Scheduled Maintenance**" means planned maintenance announced at least seven (7) calendar days in advance, conducted during Customer-approved maintenance windows.

ARTICLE 2: SCOPE OF SERVICES

2.1 Services Provided. Provider shall furnish the following Covered Services to Customer:

- (a) **Infrastructure as a Service (IaaS):**
- Virtual compute instances (general purpose, compute-optimized, memory-optimized, and GPU-enabled configurations)
 - Block storage (SSD and NVMe-based persistent volumes)
 - Object storage with 11-nines durability
 - Virtual private cloud networking with dedicated interconnects
 - Load balancing (Layer 4 and Layer 7)
 - DDoS mitigation and web application firewall
- (b) **Platform as a Service (PaaS):**
- Container orchestration platform (Kubernetes-based)
 - Serverless compute functions
 - API gateway and management
 - Message queuing and event streaming services
 - Identity and access management integration

(c) **Managed Database Services:**

- Relational databases (PostgreSQL, MySQL, Microsoft SQL Server)
- NoSQL databases (document store, key-value, and columnar)
- In-memory caching layers
- Automated backup, patching, and version upgrades
- Database performance monitoring and optimization
- High-availability configurations with automatic failover

2.2 Service Specifications. Detailed technical specifications, capacity allocations, and configuration parameters for the Covered Services are set forth in **Exhibit A** (Service Specifications) attached hereto and incorporated by reference.

2.3 Data Residency Requirements. Provider shall ensure that all Customer Data, including primary data, replicas, and backups, remains within the geographic regions specified by Customer:

(a) **European Union/United Kingdom Region:** All Customer Data for EU/UK customers shall be stored and processed exclusively within Provider's data centers located in Frankfurt, Germany; Dublin, Ireland; and London, United Kingdom. No Customer Data shall egress these regions except as explicitly authorized by Customer in writing.

(b) **Singapore Region:** All Customer Data for Asia-Pacific customers shall be stored and processed exclusively within Provider's Singapore data center facilities located at 20 Changi Business Park and 1 Jurong East Street.

(c) **Data Transfer Mechanisms:** For EU/UK data subjects, Provider warrants compliance with the EU General Data Protection Regulation (GDPR) and utilization of Standard Contractual Clauses (SCCs) as approved by the European Commission (2021/914). Provider shall execute the Data Processing Addendum attached as **Exhibit B**.

(d) **Sovereignty Controls:** Customer shall have access to real-time data residency reporting dashboards confirming geographic location of all Customer Data. Provider shall implement technical controls preventing inadvertent data migration outside designated regions.

2.4 Production Workload Support. Provider acknowledges that Customer will utilize the Services for Production Environment banking workloads, including but not limited to:

- Core banking transaction processing
- Payment processing and settlement systems
- Customer relationship management systems
- Risk analytics and compliance reporting
- Mobile and online banking applications
- Trading and securities processing platforms

ARTICLE 3: SERVICE LEVEL AGREEMENT

3.1 Uptime Commitment. Provider guarantees **99.99% Availability** for the Covered Services during each calendar month of the Term ("**SLA Commitment**").

3.2 Service Credits. If Provider fails to meet the SLA Commitment during any calendar month, Customer shall be entitled to Service Credits calculated as follows:

Monthly Availability Percentage	Service Credit (% of Monthly Fees)
99.99% to 99.95%	10%
99.94% to 99.00%	25%
98.99% to 95.00%	50%
Below 95.00%	100%

(a) **Calculation Methodology:** Availability shall be calculated separately for each Covered Service category (IaaS, PaaS, Managed Databases) based on Provider's monitoring systems and Customer's external monitoring endpoints.

(b) **Credit Application:** Service Credits shall be applied as credits against future invoices. Service Credits are Customer's sole and exclusive remedy for Provider's failure to meet the SLA Commitment.

(c) **Maximum Monthly Credit:** Total Service Credits in any calendar month shall not exceed 100% of the Monthly Recurring Charges for the affected Services.

(d) **Credit Request Procedure:** Customer must submit a Service Credit request to Provider within thirty (30) calendar days following the end of the month in which the SLA failure occurred. Requests must include supporting documentation demonstrating the Availability shortfall.

3.3 SLA Exclusions. The SLA Commitment shall not apply to unavailability resulting from:

- (a) Scheduled Maintenance performed during approved maintenance windows (maximum four (4) hours per month); (b) Customer's applications, configurations, or use of the Services; (c) Factors outside Provider's reasonable control, including force majeure events, Internet backbone failures, or DNS infrastructure issues; (d) Customer's failure to follow Provider's documented operational guidelines; (e) Suspension or termination of Services due to Customer's breach of this Agreement; (f) Cyber-attacks targeting Customer specifically (provided Provider has implemented and maintained reasonable security measures); (g) Beta, preview, or trial services explicitly designated as non-production.

3.4 Maintenance Windows. Scheduled Maintenance shall occur during the following approved windows unless otherwise agreed in writing:

- **EU/UK Region:** Saturdays, 22:00-02:00 GMT
- **Singapore Region:** Sundays, 22:00-02:00 SGT

Provider shall provide at least seven (7) calendar days' advance notice of Scheduled Maintenance via email to Customer's designated contacts and through the Provider's status portal.

3.5 Emergency Maintenance. In the event emergency maintenance is required to address critical security vulnerabilities or prevent imminent Service failure, Provider may perform emergency maintenance with at least four (4) hours' notice when reasonably practicable, or immediately if necessary to prevent significant harm.

ARTICLE 4: DISASTER RECOVERY AND BUSINESS CONTINUITY

4.1 Recovery Objectives. Provider commits to the following recovery objectives for the Covered Services:

- (a) **Recovery Time Objective (RTO):** Four (4) hours from declaration of a disaster event for Production Environment restoration to operational status.
- (b) **Recovery Point Objective (RPO):** Fifteen (15) minutes maximum data loss for transactional database systems; one (1) hour for analytical and reporting systems.

4.2 Backup and Replication. Provider shall:

- (a) Perform automated backups of all Managed Database Services at minimum daily frequency, with transaction log backups every fifteen (15) minutes for relational databases;
- (b) Maintain backup retention for minimum thirty (30) calendar days, with Customer option to extend retention up to seven (7) years for compliance purposes;
- (c) Replicate all Production Environment data synchronously to a secondary data center within the same region and asynchronously to a geographically diverse region as specified by Customer;
- (d) Encrypt all backups at rest using AES-256 encryption with Customer-managed encryption keys;
- (e) Test backup restoration procedures quarterly and provide restoration test reports to Customer within ten (10) business days of each test.

4.3 Disaster Recovery Testing. The parties shall conduct joint disaster recovery exercises on a semi-annual basis. Provider shall:

- (a) Coordinate with Customer at least thirty (30) calendar days in advance to schedule DR testing;
- (b) Execute full failover of Customer's Production Environment to the designated disaster recovery region;
- (c) Document RTO/RPO achievement and any deviations;
- (d) Provide comprehensive test reports within fifteen (15) business days following each exercise;
- (e) Implement corrective action plans for any identified deficiencies within forty-five (45) calendar days.

4.4 Disaster Declaration and Response. Provider shall:

- (a) Maintain a 24/7/365 Disaster Recovery hotline for Customer;
 - (b) Acknowledge disaster declaration within fifteen (15) minutes;
 - (c) Activate disaster recovery procedures within thirty (30) minutes;
 - (d) Provide hourly status updates to Customer's designated crisis management team;
 - (e) Conduct post-incident review within five (5) business days of service restoration.
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ARTICLE 5: COMPLIANCE AND SECURITY

5.1 Regulatory Compliance. Provider represents, warrants, and covenants that it shall maintain compliance with the following standards and regulations throughout the Term:

- (a) **SOC 2 Type II:** Provider shall maintain current SOC 2 Type II attestation reports covering Security, Availability, and Confidentiality trust service criteria. Provider shall provide Customer with copies of SOC 2 reports within fifteen (15) calendar days of report issuance, but no less than annually.
- (b) **ISO 27001:2022:** Provider shall maintain ISO 27001:2022 certification for information security management systems covering all data centers and operations supporting the Services.
- (c) **PCI DSS Level 1:** Provider shall maintain Payment Card Industry Data Security Standard (PCI DSS) Level 1 Service Provider validation for infrastructure supporting payment processing workloads.
- (d) **GDPR Compliance:** Provider shall comply with all applicable requirements of the EU General Data Protection Regulation (EU) 2016/679 and UK GDPR as implemented by the Data Protection Act 2018.
- (e) **Banking Regulations:** Provider acknowledges Customer's obligations under Basel III, Dodd-Frank Act, MiFID II, and equivalent banking regulations in Customer's operating jurisdictions. Provider shall cooperate with Customer's compliance initiatives and regulatory examinations.
- (f) **Cloud Security Standards:** Provider shall maintain compliance with Cloud Security Alliance (CSA) Cloud Controls Matrix (CCM) v4.0 at Level 2 or higher.

5.2 HIPAA Compliance. Although Customer is not a covered entity under the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"), certain Customer operations may involve processing of protected health information (PHI) related to employee health benefits. Provider agrees to execute a Business Associate Agreement (BAA) in the form attached as **Exhibit C** and to implement reasonable and appropriate safeguards required by 45 CFR Parts 160, 162, and 164.

5.3 Audit Reports and Certifications. Provider shall:

- (a) Provide Customer with current copies of all compliance certifications and audit reports referenced in Section 5.1 within fifteen (15) calendar days of Customer's written request;
- (b) Notify Customer in writing within five (5) business days of any material changes to compliance status, including certificate suspensions, material audit findings, or regulatory enforcement actions;
- (c) Permit Customer or Customer's designated auditors to review Provider's SOC 2 reports and compliance documentation during normal business hours with at least ten (10) business days' advance notice;
- (d) Remediate any material compliance deficiencies identified in audit reports within timeframes specified by the applicable standard or regulation, but in no event longer than ninety (90) calendar days.

5.4 Security Responsibilities Matrix. The parties' respective security responsibilities are delineated in the Shared Responsibility Matrix attached as **Exhibit D**, which distinguishes Provider's responsibilities for security "of" the cloud infrastructure from Customer's responsibilities for security "in" the cloud (including Customer's applications, data, and configurations).

5.5 Security Controls. Provider shall implement and maintain the following security controls:

- (a) **Access Controls:**

- Multi-factor authentication (MFA) for all administrative access
- Role-based access control (RBAC) with least-privilege principles
- Annual access reviews and immediate revocation upon employee termination
- Segregation of duties for sensitive operations

(b) **Network Security:**

- Network segmentation and micro-segmentation for Customer environments
- Intrusion detection and prevention systems (IDS/IPS)
- DDoS mitigation with minimum 100 Gbps capacity
- Web application firewall (WAF) with OWASP Top 10 protection
- Virtual private network (VPN) connectivity options

(c) **Encryption:**

- Encryption in transit using TLS 1.3 or higher for all data transmission
- Encryption at rest using AES-256 for all storage systems
- Customer-managed encryption keys through Provider's key management service or Customer's external key management system
- Cryptographic key rotation at minimum annually

(d) **Vulnerability Management:**

- Continuous vulnerability scanning of infrastructure components
- Patch deployment for critical vulnerabilities within fifteen (15) calendar days
- Patch deployment for high-severity vulnerabilities within thirty (30) calendar days
- Annual penetration testing by independent third-party security firms
- Provision of penetration test executive summaries to Customer

(e) **Security Monitoring:**

- 24/7/365 Security Operations Center (SOC) monitoring
- Security Information and Event Management (SIEM) system with minimum 90-day log retention
- Real-time alerting for security incidents
- Quarterly threat intelligence briefings to Customer

5.6 Personnel Security. Provider shall:

- (a) Conduct background checks (including criminal records checks) on all personnel with access to Customer Data, consistent with applicable laws;
- (b) Require all personnel to execute confidentiality agreements prior to accessing Customer systems or data;
- (c) Provide security awareness training to all personnel at minimum annually;
- (d) Require personnel to complete specialized training for handling financial services data;
- (e) Immediately revoke all access credentials upon employee termination or role change.

5.7 Physical Security. Provider's data centers shall implement:

- (a) 24/7/365 on-site security personnel; (b) Multi-factor authentication for physical access (biometric + access card); (c) Mantrap entries and exit lanes; (d) Continuous video surveillance with minimum 90-day retention; (e) Environmental controls (fire suppression, HVAC, power redundancy); (f) Annual physical security audits by independent assessors.

ARTICLE 6: INCIDENT MANAGEMENT AND NOTIFICATION

6.1 Incident Classification. Incidents shall be classified according to the following severity levels:

Severity	Definition	Example
Critical (P1)	Complete Production Environment outage or data breach affecting Customer Data	Total service unavailability, unauthorized access to Customer Data
High (P2)	Significant degradation of Production Environment or security incident	Performance degradation >50%, potential security compromise
Medium (P3)	Moderate service impact or minor security event	Isolated component failure, elevated error rates
Low (P4)	Minimal impact to services	Single user issues, cosmetic defects

6.2 Incident Notification Timeline. Provider shall notify Customer of incidents according to the following timelines:

(a) **Critical (P1) Incidents:** Within **fifteen (15) minutes** of detection via:

- Email to Customer's designated incident contacts
- SMS/telephone call to Customer's primary technical contact
- Automated posting to Provider's status dashboard
- Dedicated Slack/Teams incident channel (if configured)

(b) **High (P2) Incidents:** Within **thirty (30) minutes** of detection via email and status dashboard posting.

(c) **Medium (P3) Incidents:** Within **two (2) hours** of detection via email and status dashboard.

(d) **Low (P4) Incidents:** Within **four (4) hours** of detection via email.

6.3 Incident Response Procedures. For Critical and High severity incidents, Provider shall:

- (a) Immediately assign a dedicated incident commander;
- (b) Establish a bridge line within fifteen (15) minutes with Customer's technical team;
- (c) Provide status updates every thirty (30) minutes until resolution for Critical incidents, and every two (2) hours for High incidents;
- (d) Maintain detailed incident timeline documenting all actions taken;
- (e) Engage executive escalation as needed (VP of Operations or above for Critical incidents);
- (f) Continue response efforts until complete service restoration.

6.4 Security Incident Notification. Provider shall notify Customer of any Security Incident involving unauthorized access, disclosure, modification, or destruction of Customer Data:

(a) **Initial Notification:** Within **one (1) hour** of becoming aware of the Security Incident, Provider shall provide preliminary notification including:

- Nature of the Security Incident
- Affected systems and data categories
- Estimated scope of impact
- Immediate containment actions taken

(b) **Detailed Notification:** Within **seventy-two (72) hours**, Provider shall provide comprehensive written notification including:

- Complete incident timeline
- Root cause analysis (preliminary)
- Full scope of data potentially compromised
- Affected customer records (if determinable)
- Remediation actions implemented
- Recommendations for Customer protective measures

(c) **Final Incident Report:** Within fifteen (15) calendar days, Provider shall provide a final post-incident report including root cause analysis, lessons learned, and preventive measures to avoid recurrence.

6.5 Data Breach Obligations. In the event of a data breach affecting Customer Data:

- (a) Provider shall cooperate fully with Customer's investigation and remediation efforts;
- (b) Provider shall preserve all evidence and forensic data related to the breach;
- (c) Provider shall provide Customer with all information reasonably necessary to comply with data breach notification laws and regulations;
- (d) Provider shall not publicly disclose the breach without Customer's prior written consent, except as required by law;
- (e) Provider shall engage independent forensic investigators acceptable to Customer at Provider's expense;
- (f) Provider shall bear costs of customer notification, credit monitoring services, and other remediation expenses as required by applicable law or regulation, subject to the liability limitations in Article 13.

6.6 Post-Incident Reviews. Within ten (10) business days following resolution of any Critical or High incident, Provider shall conduct a post-incident review meeting with Customer to discuss:

(a) Detailed incident timeline and root cause; (b) Impact assessment; (c) Response effectiveness; (d) Corrective and preventive actions; (e) Timeline for implementation of preventive measures.

Provider shall document action items with assigned owners and target completion dates. Provider shall provide monthly status updates on outstanding action items until closure.

ARTICLE 7: AUDIT RIGHTS

7.1 Audit Access. Customer and its authorized representatives (including external auditors, consultants, and regulators) shall have the right to audit Provider's compliance with this Agreement, including security controls, data protection measures, and SLA performance.

7.2 Audit Types. Customer may conduct the following types of audits:

- (a) **Documentation Reviews:** Review of Provider's policies, procedures, security documentation, and compliance certifications upon request with five (5) business days' notice.
- (b) **Remote Audits:** Remote assessment of configurations, access controls, and security measures via screen sharing or remote access tools with ten (10) business days' notice.
- (c) **On-Site Audits:** Physical inspection of Provider's data centers and operational facilities with twenty (20) business days' advance written notice, conducted during normal business hours.
- (d) **Regulatory Examinations:** Support for examinations by banking regulators, central banks, and other governmental authorities as required by applicable law.

7.3 Audit Frequency. Customer may conduct:

(a) Documentation reviews: Unlimited frequency; (b) Remote audits: Up to four (4) times per calendar year; (c) On-site audits: Up to two (2) times per calendar year, plus additional audits following any Security Incident or material compliance issue.

7.4 Audit Costs. Customer shall bear the costs of its auditors and representatives. Provider shall not charge Customer for audit cooperation, access, or documentation provision. However, if Customer requests on-site audits exceeding the frequency specified in Section 7.3(c), Customer shall reimburse Provider's reasonable costs for personnel time and facilities access.

7.5 Audit Findings. If an audit reveals Provider's material non-compliance with this Agreement:

- (a) Provider shall, at its expense, remediate identified deficiencies within thirty (30) calendar days or such other timeframe as mutually agreed based on severity;
- (b) Provider shall provide Customer with written remediation plans within ten (10) business days of receiving audit findings;
- (c) Customer may conduct follow-up audits to verify remediation without limitation;
- (d) If Provider fails to remediate material security deficiencies within the specified timeframe, Customer may, at its option:
 - Suspend processing of Customer Data on the affected systems;
 - Terminate this Agreement pursuant to Section 11.2 (Termination for Cause);
 - Engage third-party specialists to perform remediation at Provider's expense.

7.6 Confidentiality of Audit Results. Customer shall treat audit findings as Confidential Information (as defined in Article 9) and shall not disclose audit results to third parties except:

- (a) To Customer's regulators as required by law;
- (b) To Customer's legal counsel and professional advisors bound by confidentiality obligations;
- (c) As required in legal proceedings relating to this Agreement;
- (d) With Provider's prior written consent.

7.7 Third-Party Audit Reports. In lieu of certain Customer audits, Provider may provide current third-party audit reports (e.g., SOC 2 Type II reports) that reasonably satisfy Customer's audit objectives. Customer shall review such reports in good faith to determine whether additional audit activities are necessary.

ARTICLE 8: DEDICATED SUPPORT AND GOVERNANCE

8.1 Technical Account Manager (TAM). Provider shall assign a dedicated Technical Account Manager to Customer who shall:

- (a) Serve as Customer's primary point of contact for strategic planning, escalations, and service optimization;
- (b) Possess expert knowledge of Provider's services and Customer's use cases;
- (c) Have minimum five (5) years' experience in enterprise cloud services and financial services sector;
- (d) Be available during Customer's core business hours (08:00-18:00 GMT, Monday-Friday);
- (e) Respond to Customer inquiries within four (4) business hours;
- (f) Conduct monthly check-in calls with Customer's technical team;
- (g) Coordinate with Provider's internal teams for issue escalation and resolution;
- (h) Provide proactive recommendations for architecture optimization, cost management, and service improvements.

8.2 TAM Replacement. If the assigned TAM is replaced for any reason, Provider shall:

- (a) Provide at least thirty (30) calendar days' advance notice when reasonably practicable;
- (b) Ensure seamless transition with comprehensive knowledge transfer;
- (c) Introduce the replacement TAM to Customer's team with appropriate handover documentation;
- (d) Maintain continuity of support quality during transition.

Customer may request replacement of the TAM if Customer reasonably determines the TAM is not meeting performance expectations. Provider shall assign a replacement TAM within twenty (20) business days of such request.

8.3 Quarterly Business Reviews (QBRs). The parties shall conduct Quarterly Business Reviews to assess service performance and strategic alignment. QBRs shall:

- (a) Occur within forty-five (45) calendar days following the end of each calendar quarter;
- (b) Include representatives from both parties at appropriate levels:
 - **Provider:** TAM, Solutions Architect, Customer Success Manager, and (for annual reviews) VP of Customer Operations
 - **Customer:** Technical leads, architecture team, and business stakeholders
- (c) Review and discuss:
 - Service performance metrics and SLA achievement
 - Capacity utilization and forecasting
 - Cost optimization opportunities
 - Upcoming feature releases and service enhancements
 - Security posture and compliance status
 - Roadmap alignment and future requirements
 - Outstanding issues and action items
 - Customer satisfaction assessment
- (d) Result in documented meeting minutes with action items, owners, and target dates distributed within ten (10) business days.

8.4 Support Tiers. Provider shall provide the following technical support:

- (a) **24/7/365 Critical Support:** Immediate response for Critical (P1) incidents affecting Production Environment, with:
 - Acknowledgment within fifteen (15) minutes
 - Qualified engineer engaged within thirty (30) minutes
 - Continuous engagement until resolution
- (b) **Business Hours Support:** For High (P2) and Medium (P3) incidents:
 - Acknowledgment: P2 within 30 minutes, P3 within 2 hours
 - Business hours: 06:00-20:00 GMT, Monday-Friday (excluding UK public holidays)

- Escalation path to 24/7 support if business impact increases

(c) **Standard Support:** For Low (P4) incidents and general inquiries:

- Acknowledgment within four (4) business hours
- Resolution per standard support procedures

8.5 Escalation Procedures. Customer may escalate unresolved issues according to the following matrix:

Level	Title	Response Time
Level 1	TAM	4 hours
Level 2	Customer Success Manager	2 hours
Level 3	Director of Customer Operations	1 hour
Level 4	VP of Operations	30 minutes
Executive	SVP/CTO	15 minutes

8.6 Designated Contacts. Each party shall designate and maintain current contact information for:

(a) Primary technical contact; (b) Security incident response team; (c) Executive escalation contacts; (d) Legal and compliance contacts; (e) Billing and commercial contacts.

Contact information shall be updated within five (5) business days of any changes.

ARTICLE 9: CONFIDENTIALITY

9.1 Confidential Information. "Confidential Information" means any non-public information disclosed by one party ("Disclosing Party") to the other party ("Receiving Party"), whether orally, in writing, or in electronic form, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances of disclosure, including:

- (a) For Provider: technical specifications, architectures, source code, security measures, pricing models, and business strategies;
- (b) For Customer: Customer Data, business plans, financial information, regulatory examination results, and customer lists;
- (c) For both parties: terms and conditions of this Agreement (except as needed for disclosure to legal/financial advisors or as required by law).

9.2 Obligations. The Receiving Party shall:

- (a) Maintain Confidential Information in strict confidence using at least the same degree of care it uses to protect its own confidential information, but no less than reasonable care;
- (b) Not disclose Confidential Information to any third party except as expressly permitted in this Agreement;
- (c) Use Confidential Information solely for purposes of performing its obligations or exercising its rights under this Agreement;
- (d) Limit access to Confidential Information to employees, contractors, and agents who have a legitimate need to know and who are bound by confidentiality obligations at least as protective as those herein;
- (e) Return or destroy (at Disclosing Party's option) all Confidential Information upon termination of this Agreement or earlier upon request.

9.3 Exceptions. Confidential Information shall not include information that:

(a) Is or becomes publicly available through no breach of this Agreement by Receiving Party; (b) Was rightfully in Receiving Party's possession prior to disclosure; (c) Is rightfully obtained by Receiving Party from a third party without breach of confidentiality obligations; (d) Is independently developed by Receiving Party without use of or reference to Disclosing Party's Confidential Information.

9.4 Required Disclosures. If Receiving Party is required by law, regulation, or court order to disclose Confidential Information, Receiving Party shall:

(a) Promptly notify Disclosing Party of such requirement (unless legally prohibited); (b) Cooperate with Disclosing Party's efforts to seek protective orders or other appropriate relief; (c) Disclose only that portion of Confidential Information legally required; (d) Use reasonable efforts to obtain confidential treatment for any Confidential Information disclosed.

9.5 Injunctive Relief. The parties acknowledge that monetary damages may be insufficient to remedy breach of this Article 9, and that the Disclosing Party shall be entitled to seek equitable relief, including injunction and specific performance, without prejudice to other remedies available at law or equity.

ARTICLE 10: FEES AND PAYMENT TERMS

10.1 Fee Structure. Customer shall pay Provider fees consisting of:

- (a) **Monthly Recurring Charges (MRC):** Fixed monthly fees for Reserved Instances and committed capacity;
- (b) **Usage-Based Charges:** Variable charges for consumption exceeding Reserved Instance allocations, calculated based on actual usage;
- (c) **Professional Services Fees:** Fees for migration assistance, architectural consulting, and training as set forth in separate statements of work.

10.2 Reserved Instance Pricing. Customer commits to the following Reserved Instance purchases for the Initial Term:

(a) **Compute Instances:**

- Year 1: 2,000 vCPU cores (\$450,000 per month)
- Year 2: 2,500 vCPU cores (\$540,000 per month with 4% volume discount)
- Year 3: 3,000 vCPU cores (\$612,000 per month with 6% volume discount)

(b) **Managed Database Services:**

- Year 1: 500 database vCPUs (\$275,000 per month)
- Year 2: 650 database vCPUs (\$332,200 per month with 4% volume discount)
- Year 3: 800 database vCPUs (\$380,800 per month with 6% volume discount)

(c) **Storage:**

- Block Storage: 500 TB committed (\$50,000 per month, flat rate)
- Object Storage: 2 PB committed (\$40,000 per month, flat rate)

10.3 Volume Discount Tiers. The following volume discounts apply to Usage-Based Charges exceeding Reserved Instance allocations:

Annual Spend (USD)	Discount Rate
\$0 - \$1,000,000	List price
\$1,000,001 - \$3,000,000	8% discount
\$3,000,001 - \$5,000,000	12% discount
\$5,000,001 - \$10,000,000	15% discount
Above \$10,000,000	18% discount

10.4 Egress Fee Structure. Data egress charges (data transfer out from Provider's infrastructure) shall be calculated as follows:

(a) **Intra-Region Transfer:** No charge for data transfer between services within the same region;

(b) **Inter-Region Transfer:** \$0.02 per GB for transfer between Customer's designated regions (EU/UK ↔ Singapore);

(c) **Internet Egress:**

- First 100 TB per month: \$0.08 per GB
- Next 400 TB per month: \$0.06 per GB
- Next 500 TB per month: \$0.04 per GB
- Above 1,000 TB per month: \$0.025 per GB

(d) **CDN/Partner Network Egress:** Negotiated rates per separate agreement with Content Delivery Network providers;

(e) **Egress Cap:** Total egress charges shall not exceed 20% of Customer's total Monthly Recurring Charges plus Usage-Based Charges in any calendar month without prior written approval from Customer.

10.5 Price Protection. Provider agrees to the following price protection provisions:

(a) **Reserved Instance Price Lock:** Pricing for Reserved Instances committed at contract execution shall remain fixed for the duration of each twelve (12) month commitment period;

(b) **Annual Price Increases:** Provider may increase list prices for Usage-Based Charges no more than once per twelve (12) month period, with increases capped at the lesser of: (i) 5% annually, or (ii) the percentage increase in the US Consumer Price Index (CPI-U) for the preceding twelve (12) months;

(c) **Price Reduction Pass-Through:** If Provider reduces list prices for any Covered Services during the Term, such reduced pricing shall automatically apply to Customer within thirty (30) calendar days;

(d) **Competitive Price Protection:** If Customer provides Provider with a documented, comparable quote from a competitor for substantially similar services at lower pricing, Provider shall have thirty (30) calendar days to match or beat the competitor's pricing or permit Customer to reduce services without penalty;

(e) **Annual Price Adjustment Notice:** Provider shall provide Customer with at least ninety (90) calendar days' advance written notice of any price increases.

10.6 Invoicing and Payment. Provider shall:

(a) Issue invoices monthly in arrears within five (5) business days following month-end;

(b) Provide detailed usage reports showing Reserved Instance utilization, overage consumption, and egress charges;

(c) Deliver invoices electronically to Customer's designated billing contact;

(d) Accept payment via wire transfer or ACH within thirty (30) calendar days of invoice date;

(e) Provide access to online billing portal showing real-time usage and cost forecasting.

10.7 Disputed Charges. If Customer disputes any charges in good faith:

(a) Customer shall notify Provider in writing within fifteen (15) calendar days of invoice date, specifying the disputed amounts and basis for dispute;

(b) Customer shall pay all undisputed amounts by the due date;

(c) Provider shall investigate and respond to the dispute within twenty (20) business days;

(d) If the dispute is resolved in Customer's favor, Provider shall issue a credit on the next invoice;

(e) If parties cannot resolve the dispute, it shall be escalated pursuant to the dispute resolution procedures in Section 14.7.

10.8 Late Payment. Customer shall pay interest on undisputed late payments at the rate of 1.5% per month (18% per annum) or the maximum rate permitted by applicable law, whichever is lower. Provider may suspend Services for non-payment only after: (a) providing thirty (30) calendar days' written notice, and (b) providing Customer with opportunity to cure within such notice period.

10.9 Taxes. All fees are exclusive of taxes. Customer shall be responsible for all sales, use, value-added (VAT), goods and services (GST), and other taxes or duties imposed on the Services, excluding taxes based on Provider's net income. Provider shall separately invoice applicable taxes, and Customer shall pay such taxes or provide Provider with valid tax exemption certificates.

ARTICLE 11: TERM AND TERMINATION

11.1 Initial Term and Renewal. This Agreement shall commence on the Effective Date and continue for an initial term of three (3) years ("**Initial Term**"). Following the Initial Term, this Agreement shall automatically renew for successive one (1) year periods ("**Renewal Terms**") unless either party provides written notice of non-renewal at least one hundred eighty (180) calendar days prior to the end of the then-current term.

11.2 Termination for Cause. Either party may terminate this Agreement for cause upon written notice if:

- (a) The other party materially breaches this Agreement and fails to cure such breach within thirty (30) calendar days after receiving written notice specifying the breach (or ten (10) calendar days for payment breaches);
- (b) The other party becomes insolvent, files for bankruptcy, makes an assignment for the benefit of creditors, or has a receiver or trustee appointed over its assets;
- (c) Provider experiences cumulative Availability below 99.0% over any consecutive six (6) month period;
- (d) Provider suffers a material Security Incident resulting from Provider's gross negligence or willful misconduct, and fails to remediate within timeframes specified in Section 6.5.

11.3 Termination for Convenience. Customer may terminate this Agreement for convenience upon providing Provider with one hundred eighty (180) calendar days' advance written notice and payment of:

- (a) All amounts due and owing through the effective termination date;
- (b) Early termination fees equal to 50% of the remaining Reserved Instance commitments for the then-current twelve (12) month commitment period;
- (c) Reasonable costs for migration assistance as set forth in Section 11.5.

Provider may not terminate this Agreement for convenience during the Initial Term. Following the Initial Term, Provider may terminate for convenience with one hundred eighty (180) calendar days' advance written notice, but only if Provider is ceasing operation of the Covered Services entirely (not merely for Customer).

11.4 Effect of Termination. Upon termination or expiration of this Agreement:

- (a) Customer's right to access and use the Services shall cease;
- (b) Provider shall cooperate with Customer's data retrieval and migration efforts pursuant to Section 11.5;
- (c) Customer shall pay all amounts due and owing through the effective termination date;
- (d) The following provisions shall survive: Articles 9 (Confidentiality), 13 (Limitation of Liability and Indemnification), 14 (General Provisions), and any other provisions that by their nature should survive.

11.5 Data Retrieval and Migration Assistance. Upon termination or expiration:

(a) **Data Export Period:** Provider shall provide Customer with a ninety (90) calendar day data export period following the termination date during which Customer may retrieve all Customer Data in industry-standard formats at no additional charge;

(b) **Export Formats:** Provider shall export Customer Data in commonly used formats including:

- Database exports: SQL dumps, CSV, or Parquet files
- Object storage: Direct access to storage buckets or bulk download
- Application data: JSON, XML, or native application formats

(c) **Migration Assistance:** Provider shall provide up to 200 hours of professional services during the data export period to assist with:

- Data extraction and validation
- Format conversion if required
- Transfer coordination to Customer's new infrastructure
- Technical documentation and runbooks
- Knowledge transfer sessions

(d) **Data Deletion:** Following the data export period, Provider shall securely delete all Customer Data from its systems within thirty (30) calendar days and provide Customer with a certificate of destruction. Provider may retain Customer Data longer only to the extent required by applicable law or regulation.

(e) **Post-Termination Access:** If Customer requires access to Services beyond the data export period to complete migration, Provider shall make Services available at Provider's then-current month-to-month rates.

11.6 Partial Termination. Customer may terminate individual Services or reduce Reserved Instance commitments with one hundred eighty (180) calendar days' advance written notice, subject to payment of early termination fees equal to 50% of the remaining commitment for the affected Services. This Agreement shall remain in effect for all Services not terminated.

ARTICLE 12: INSURANCE

12.1 Provider Insurance Requirements. Provider shall obtain and maintain, at its own expense, the following insurance coverage throughout the Term:

(a) Cyber Liability and Data Breach Insurance:

- Minimum coverage: \$25,000,000 per occurrence and annual aggregate
- Coverage shall include:
 - Network security liability
 - Privacy liability (including regulatory defense and penalties where insurable)
 - Data breach response costs (notification, credit monitoring, forensics)
 - Media liability
 - Business interruption
 - Cyber extortion and ransomware
- Deductible not to exceed \$1,000,000

(b) Technology Errors and Omissions (E&O) Insurance:

- Minimum coverage: \$10,000,000 per occurrence and annual aggregate
- Coverage shall include claims arising from Provider's negligent acts, errors, or omissions in providing the Services

(c) Commercial General Liability Insurance:

- Minimum coverage: \$5,000,000 per occurrence and \$10,000,000 annual aggregate
- Coverage for bodily injury, property damage, and personal injury

(d) Workers' Compensation Insurance:

- Statutory limits as required by law in all jurisdictions where Provider has employees
- Employers' Liability: Minimum \$1,000,000 per accident

(e) Commercial Umbrella/Excess Liability Insurance:

- Minimum coverage: \$25,000,000 per occurrence and annual aggregate
- Coverage shall be excess over primary General Liability, E&O, Cyber Liability, and Employers' Liability

12.2 Insurance Certificates and Additional Insured. Provider shall:

- (a) Provide Customer with Certificates of Insurance evidencing required coverage within fifteen (15) calendar days of the Effective Date and upon each policy renewal;
- (b) Name Customer as an additional insured on Provider's Commercial General Liability and Umbrella policies;
- (c) Ensure all policies (except Workers' Compensation) provide for thirty (30) calendar days' advance written notice to Customer of cancellation, non-renewal, or material reduction in coverage;
- (d) Maintain coverage with insurers rated A- or better by A.M. Best Company;
- (e) Provide Customer with complete copies of insurance policies upon request.

12.3 No Limitation. Provider's maintenance of insurance shall not limit Provider's liability or obligations under this Agreement. Insurance coverage amounts represent minimum requirements and shall not constitute a limitation on Provider's liability under Article 13.

12.4 Subcontractor Insurance. Provider shall ensure that any subcontractors performing material services maintain insurance coverage reasonably appropriate for their scope of work and consistent with industry standards.

ARTICLE 13: LIMITATION OF LIABILITY AND INDEMNIFICATION

13.1 Limitation of Liability - General. EXCEPT AS SET FORTH IN SECTIONS 13.2 AND 13.3 BELOW, NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOSS OF PROFITS, REVENUE, DATA, OR BUSINESS OPPORTUNITIES, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), OR OTHERWISE, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

13.2 Liability Cap. EXCEPT AS SET FORTH IN SECTION 13.3 BELOW, EACH PARTY'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), OR OTHERWISE, SHALL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CUSTOMER TO PROVIDER DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO LIABILITY.

13.3 Exceptions to Limitations. The limitations in Sections 13.1 and 13.2 shall not apply to:

- (a) Either party's indemnification obligations under Sections 13.4, 13.5, or 13.6;
- (b) Customer's payment obligations for Services rendered;
- (c) Either party's breach of confidentiality obligations under Article 9;
- (d) Either party's gross negligence or willful misconduct;
- (e) Provider's obligations arising from data breaches or Security Incidents caused by Provider's failure to implement required security controls under Section 5.5;
- (f) Claims arising from Provider's violation of applicable data protection laws (including GDPR);
- (g) Provider's failure to maintain required insurance under Article 12.

13.4 Provider Indemnification - General. Provider shall indemnify, defend (with counsel reasonably acceptable to Customer), and hold harmless Customer and its affiliates, officers, directors, employees, and agents from and against any and all third-party claims, actions, suits, losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from or relating to:

- (a) Provider's breach of this Agreement;
- (b) Provider's negligence or willful misconduct;
- (c) Claims that the Services infringe or misappropriate any third-party intellectual property rights;
- (d) Personal injury, death, or tangible property damage caused by Provider's acts or omissions;

- (e) Provider's violation of applicable laws or regulations;
- (f) Claims by Provider's employees, contractors, or agents.

13.5 Provider Indemnification - Data Breaches. Provider shall indemnify, defend, and hold harmless Customer from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from or relating to:

- (a) Unauthorized access to, disclosure of, modification of, or destruction of Customer Data resulting from Provider's failure to implement required security controls under Section 5.5;
- (b) Provider's violation of data protection laws and regulations including GDPR, UK Data Protection Act 2018, Singapore Personal Data Protection Act 2012, and equivalent laws;
- (c) Regulatory fines, penalties, and enforcement actions imposed on Customer arising from Provider's data protection violations;
- (d) Costs of mandatory customer notification under data breach notification laws;
- (e) Credit monitoring services and identity theft protection services required for affected individuals;
- (f) Costs of forensic investigation, legal counsel, and regulatory response;
- (g) Claims by individuals whose personal data was compromised due to Provider's acts or omissions.

Provider's indemnification obligations under this Section 13.5 shall not be subject to the limitation of liability in Section 13.2, provided that such liability directly results from Provider's breach of its security obligations or data protection law violations.

13.6 Customer Indemnification. Customer shall indemnify, defend (with counsel reasonably acceptable to Provider), and hold harmless Provider and its affiliates, officers, directors, employees, and agents from and against any and all third-party claims, actions, suits, losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from or relating to:

- (a) Customer Data or Customer's use of Customer Data in violation of law;
- (b) Customer's use of the Services in violation of this Agreement or applicable law;
- (c) Claims that Customer Data infringes or misappropriates any third-party intellectual property rights;
- (d) Customer's violation of applicable banking, financial services, or data protection regulations in its use of the Services.

13.7 Indemnification Procedures. A party seeking indemnification (the "**Indemnified Party**") shall:

- (a) Promptly notify the indemnifying party (the "**Indemnifying Party**") in writing of any claim for which indemnification is sought, provided that failure to provide prompt notice shall not relieve the Indemnifying Party except to the extent materially prejudiced;
- (b) Grant the Indemnifying Party sole control over the defense and settlement of the claim, provided that the Indemnifying Party shall not enter into any settlement that: (i) requires payment by the Indemnified Party, (ii) admits fault or liability on behalf of the Indemnified Party, or (iii) imposes injunctive or other equitable relief on the Indemnified Party, without the Indemnified Party's prior written consent;
- (c) Provide reasonable cooperation in the defense of the claim at the Indemnifying Party's expense;
- (d) Have the right to participate in the defense at its own expense with counsel of its choice.

ARTICLE 14: GENERAL PROVISIONS

14.1 Entire Agreement. This Agreement, together with all Exhibits attached hereto, constitutes the entire agreement between the parties concerning the subject matter hereof and supersedes all prior or contemporaneous agreements, proposals, negotiations, representations, and understandings, whether written or oral. This Agreement may be amended only by a written instrument signed by authorized representatives of both parties.

14.2 Exhibits. The following Exhibits are attached to and incorporated into this Agreement by reference:

- **Exhibit A:** Service Specifications
- **Exhibit B:** Data Processing Addendum (GDPR/UK DPA Compliance)
- **Exhibit C:** Business Associate Agreement (HIPAA Compliance)
- **Exhibit D:** Shared Security Responsibility Matrix
- **Exhibit E:** Disaster Recovery and Business Continuity Plan
- **Exhibit F:** Acceptable Use Policy
- **Exhibit G:** Service Level Agreement Details and Credit Calculation Methodology

In the event of conflict between the main body of this Agreement and any Exhibit, the main body shall control unless the Exhibit expressly states otherwise.

14.3 Assignment. Neither party may assign this Agreement or any rights or obligations hereunder without the prior written consent of the other party, which consent shall not be unreasonably withheld, conditioned, or delayed; provided, however, that either party may assign this Agreement without consent:

- (a) To an affiliate or subsidiary, provided the assigning party remains liable for all obligations;
- (b) In connection with a merger, acquisition, reorganization, or sale of all or substantially all of its assets related to this Agreement;
- (c) To a successor entity resulting from a corporate restructuring.

Any attempted assignment in violation of this Section shall be void. This Agreement shall bind and inure to the benefit of the parties' permitted successors and assigns.

14.4 Governing Law and Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of England and Wales, without regard to its conflict of laws principles. The parties irrevocably submit to the exclusive jurisdiction of the courts of England and Wales for any disputes arising out of or relating to this Agreement. The United Nations Convention on Contracts for the International Sale of Goods shall not apply to this Agreement.

14.5 Notices. All notices, requests, consents, and other communications under this Agreement shall be in writing and shall be deemed given:

- (a) When delivered personally;
- (b) When transmitted via email with confirmation of receipt (provided a copy is also sent by one of the other methods);
- (c) Three (3) business days after being sent by registered or certified mail, return receipt requested;
- (d) One (1) business day after being sent by reputable overnight courier

service.

Notices shall be sent to the addresses set forth below or such other addresses as either party may designate by written notice:

If to Provider: StratusCloud Technologies Inc. 2500 Technology Boulevard, Suite 800 Santa Clara, CA 95054 Attn: Chief Legal Officer Email: legal@stratuscloud.com

If to Customer: Meridian Financial Group One Meridian Plaza, 42nd Floor London EC2N 2DB United Kingdom Attn: General Counsel Email: legal.notices@meridianfg.com

14.6 Severability. If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the validity, legality, and enforceability of the remaining provisions shall not be affected or impaired. The parties shall negotiate in good faith to replace any invalid provision with a valid provision that achieves the intended economic effect to the greatest extent possible.

14.7 Dispute Resolution. In the event of any dispute arising out of or relating to this Agreement:

- (a) **Executive Escalation:** The parties shall first attempt to resolve the dispute through good faith negotiations between senior executives (VP level or above) within thirty (30) calendar days of written notice of the dispute.
- (b) **Mediation:** If executive escalation does not resolve the dispute, the parties agree to submit the dispute to non-binding mediation before a mutually acceptable mediator in London, England. Each party shall bear its own costs of mediation, and the parties shall share equally the mediator's fees.
- (c) **Litigation:** If mediation does not resolve the dispute within sixty (60) calendar days, either party may pursue litigation in accordance with Section 14.4.
- (d) **Continuity of Services:** Provider shall continue providing Services during dispute resolution unless this Agreement is terminated in accordance with Article 11 or a court orders otherwise.

14.8 Waiver. No waiver of any provision of this Agreement shall be effective unless in writing and signed by the party against whom the waiver is sought to be enforced. No failure or delay by either party in exercising any right, power, or remedy shall operate as a waiver thereof, nor shall any single or partial exercise preclude any other or further exercise of any right, power, or remedy.

14.9 Force Majeure. Neither party shall be liable for any failure or delay in performance (except for payment obligations) due to causes beyond its reasonable control, including acts of God, war, terrorism, riots, embargoes, acts of civil or military authorities, fire, floods, earthquakes, accidents, pandemics, strikes, or shortages of transportation, facilities, fuel, energy, labor, or materials ("**Force Majeure Event**"). The affected party shall:

- (a) Promptly notify the other party of the Force Majeure Event and its expected duration;
- (b) Use commercially reasonable efforts to mitigate the effects and resume performance;
- (c) Continue performing obligations not affected by the Force Majeure Event.

If a Force Majeure Event prevents Provider from providing the Services for more than thirty (30) consecutive days, Customer may, at its option:

- Suspend payment for affected Services during the continuation of the Force Majeure Event; or
- Terminate the affected Services (or this Agreement if substantially all Services are affected) without penalty upon written notice.

14.10 Independent Contractors. The parties are independent contractors. This Agreement does not create a partnership, joint venture, agency, franchise, sales representative, or employment relationship. Neither party has authority to bind the other or incur obligations on the other's behalf without prior written consent.

14.11 Publicity. Neither party shall issue any press release or make any public statement regarding this Agreement or the relationship between the parties without the other party's prior written consent, except as required by law or regulation. Customer consents to Provider identifying Customer as a customer and using Customer's name and logo on Provider's website and in sales materials, subject to Customer's prior review and approval of the specific usage.

14.12 Export Compliance. The Services and related technology may be subject to export control laws and regulations of the United States and other jurisdictions. Each party shall comply with all applicable export control laws and regulations. Customer shall not access or use the Services in, or export Customer Data to, any country or territory subject to comprehensive US trade sanctions (including Cuba, Iran, North Korea, Syria, and the Crimea region) or any country listed in Country Groups D:1 or E:1 in Supplement No. 1 to 15 CFR Part 740.

14.13 Subcontractors. Provider may utilize subcontractors to perform Services, provided that:

- (a) Provider remains fully responsible for subcontractors' performance;
- (b) Provider ensures subcontractors comply with obligations equivalent to Provider's obligations under this Agreement;
- (c) Provider conducts appropriate due diligence and ongoing monitoring of subcontractors;
- (d) Provider provides Customer with a list of material subcontractors upon request and notifies Customer of material subcontractor changes;
- (e) Subcontractors execute appropriate confidentiality and data protection agreements;
- (f) Provider does not utilize subcontractors located in jurisdictions prohibited by Customer or that would violate Customer's data residency requirements.

14.14 Government Regulations. Provider acknowledges that Customer is subject to extensive banking regulations, including examination and audit by various governmental and regulatory authorities. Provider shall cooperate with Customer in connection with any such examinations or audits, including providing requested documentation and granting regulator access to Provider's facilities and systems as reasonably necessary (subject to advance notice and reasonable confidentiality protections).

14.15 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures and PDF signatures shall have the same legal effect as original signatures.

14.16 Survival. The following provisions shall survive termination or expiration of this Agreement: Sections 2.3 (Data Residency - to the extent necessary to complete data return), 3.2 (Service Credits for pre-termination periods), Article 9 (Confidentiality), Section 11.5 (Data Retrieval and Migration Assistance), Article 13 (Limitation of Liability and Indemnification), and this Article 14 (General Provisions).

SIGNATURE PAGE FOLLOWS

SIGNATURE PAGE

IN WITNESS WHEREOF, the parties have executed this Cloud Services Agreement as of the Effective Date.

STRATUSCLOUD TECHNOLOGIES INC.

By: _____

Name: Jennifer K. Williamson

Title: Chief Executive Officer

Date: _____

MERIDIAN FINANCIAL GROUP

By: _____

Name: Sir David M. Pemberton

Title: Group Chief Executive Officer

Date: _____

By: _____

Name: Rachel Singh

Title: Chief Technology Officer

Date: _____